



**U.S. Citizenship
and Immigration
Services**

**Non-Precedent Decision of the
Administrative Appeals Office**

In Re: 35611486

Date: JAN. 17, 2025

Appeal of Nebraska Service Center Decision

Form I-140, Immigrant Petition for Alien Workers (Extraordinary Ability)

The Petitioner, a mechanic specializing in trucks and other heavy machinery, seeks classification as an individual of extraordinary ability. *See* Immigration and Nationality Act (the Act) section 203(b)(1)(A), 8 U.S.C. § 1153(b)(1)(A). This first preference classification makes immigrant visas available to those who can demonstrate their extraordinary ability through sustained national or international acclaim and whose achievements have been recognized in their field through extensive documentation.

The Director of the Nebraska Service Center denied the petition, concluding that the record did not establish that the Petitioner had satisfied at least three of ten initial evidentiary criteria, as required. The Director also concluded that the Petitioner's field did not fall within the statutory parameters of the sciences, arts, education, business, or athletics for which the classification is available. The matter is now before us on appeal under 8 C.F.R. § 103.3.

The Petitioner bears the burden of proof to demonstrate eligibility by a preponderance of the evidence. *Matter of Chawathe*, 25 I&N Dec. 369, 375-76 (AAO 2010). We review the questions in this matter de novo. *Matter of Christo's, Inc.*, 26 I&N Dec. 537, 537 n.2 (AAO 2015). Upon de novo review, we will dismiss the appeal.

I. LAW

Section 203(b)(1)(A) of the Act makes immigrant visas available to individuals with extraordinary ability in the sciences, arts, education, business, or athletics which has been demonstrated by sustained national or international acclaim and whose achievements have been recognized in the field through extensive documentation. These individuals must seek to enter the United States to continue work in the area of extraordinary ability, and their entry into the United States will substantially benefit the United States. The term "extraordinary ability" refers only to those individuals in "that small percentage who have risen to the very top of the field of endeavor." 8 C.F.R. § 204.5(h)(2). The implementing regulation at 8 C.F.R. § 204.5(h)(3) sets forth a multi-part analysis. First, a petitioner can demonstrate international recognition of their achievements in the field through a one-time achievement in the form of a major, internationally recognized award. Or the petitioner can submit evidence that meets at least three of the ten criteria listed at 8 C.F.R. § 204.5(h)(3)(i)–(x), including

items such as awards, published material in certain media, and scholarly articles. If those standards do not readily apply to the individual's occupation, then the regulation at 8 C.F.R. § 204.5(h)(4) allows the submission of comparable evidence.

Once a petitioner has met the initial evidence requirements, the next step is a final merits determination, in which we assess whether the record shows sustained national or international acclaim and demonstrates that the individual is among the small percentage at the very top of the field of endeavor. *See Kazarian v. USCIS*, 596 F.3d 1115 (9th Cir. 2010) (discussing a two-part review where the documentation is first counted and then, if fulfilling the required number of criteria, considered in the context of a final merits determination); *see also Visinscaia v. Beers*, 4 F. Supp. 3d 126, 131-32 (D.D.C. 2013); *Rijal v. USCIS*, 772 F. Supp. 2d 1339 (W.D. Wash. 2011).

II. ANALYSIS

After completing military service in his native Uzbekistan, the Petitioner earned a diploma in vehicle repair between 2010 and 2013. His résumé indicates that he began working as a mechanic in late 2013. From May 2021 to May 2023, he worked as an auto mechanic for [REDACTED] which he described as “one of the largest and dynamically developing companies in the [Samarkand] region.” The Petitioner entered the United States as a B-2 nonimmigrant visitor in June 2023. A logistics company in [REDACTED] Pennsylvania intends “to retain [the Petitioner’s] services as an independent Mechanic.”

Because the Petitioner has not indicated or shown that he received a major, internationally recognized award, he must satisfy at least three of the alternate regulatory criteria at 8 C.F.R. § 204.5(h)(3)(i)–(x). The Petitioner claimed to have satisfied four of these criteria, summarized below:

- (ii), Membership in associations that require outstanding achievements;
- (iv), Participation as a judge of the work of others;
- (viii), Leading or critical role for distinguished organizations or establishments; and
- (ix), High remuneration for services.

The Director concluded that the Petitioner had not met any of the criteria.

Upon review of the record, we conclude that the Petitioner has met the requirements for judging the work of others under 8 C.F.R. § 204.5(h)(3)(iv). We will discuss other criteria below.

1. Membership

The regulation at 8 C.F.R. § 204.5(h)(3)(ii) calls for documentation of the individual's membership in associations in the field for which classification is sought, which require outstanding achievements of their members, as judged by recognized national or international experts in their disciplines or fields.

The Petitioner claimed membership in the American Society of Mechanical Engineers (ASME), but did not initially document his membership or establish that ASME requires outstanding achievements of its members. The Petitioner submitted a printout from ASME's website, with a “Purchase Membership” link. The printout also indicates that the organization has “[s]tudent or professional memberships” and

that “future Mechanical Engineer[s]” can join, indicating that one need not be a fully qualified or practicing mechanical engineer to join ASME.

In April 2024, the Director issued a notice of intent to deny (NOID) the petition. The Director stated that “the petitioner did not submit any evidence of his membership in ASME or evidence to establish that the ASME . . . requires outstanding achievements of its members, as judged by recognized national or international experts in their disciplines or fields.”

In response, the Petitioner stated that his “membership [in the ASME] serves as a testament to professional growth and development.” The Petitioner described some of the benefits of ASME membership and submitted a printout of an email message he received from the ASME Foundation, soliciting a year-end donation.

In the denial notice, the Director stated that the submitted email message establishes neither the Petitioner’s ASME membership nor its membership requirements.

On appeal, the Petitioner contends that his “election as a member of the ASME is a significant testament to his outstanding professional achievements and contributions to the field of mechanical engineering,” and “demonstrates his stature as a leading figure in the field.” The Petitioner also contends that “[m]embership in ASME is reserved for individuals who demonstrate a high level of expertise, leadership, and commitment to the engineering profession.”

The Petitioner submits no evidence to support these assertions about ASME’s membership standards or to show that members are elected. Statements in a brief, motion, or Notice of Appeal are not evidence and thus are not entitled to any evidentiary weight. *Matter of S-M-*, 22 I&N Dec. 49, 51 (BIA 1998).

The email soliciting a donation may be circumstantial evidence of the Petitioner’s membership in ASME, but the Petitioner has not submitted any evidence to show that ASME membership meets the requirements spelled out in 8 C.F.R. § 204.5(h)(3)(ii). The “Purchase Membership” link on a submitted printout suggests, instead, that membership is a matter of paying a fee. Because the payment of this fee is the only documented membership requirement, the Petitioner has not established that ASME requires outstanding achievements of its members. *See generally* 6 *USCIS Policy Manual* F.2(B)(1), <https://www.uscis.gov/policy-manual>.

The Petitioner has not met his burden of proof to satisfy the requirements of this criterion.

2. Leading or Critical Role

The regulation at 8 C.F.R. § 204.5(h)(3)(viii) calls for evidence that the individual has performed in a leading or critical role for organizations or establishments that have a distinguished reputation.

First, we determine whether the person has performed in a leading or critical role for an organization, establishment, or a division or department of an organization or establishment. *See generally* 6 *USCIS Policy Manual*, *supra*, at F.2(B)(1). Second, we determine whether the organization or establishment, or the department or division for which the person holds or held a leading or critical role, has a distinguished reputation. *Id.*

For a critical role, we look at whether the evidence establishes that the person has contributed in a way that is of significant importance to the outcome of the activities of the organization or establishment or of a division or department thereof. *Id.*

Letters from persons with personal knowledge of the significance of the person's leading or critical role can be particularly helpful in making this determination, so long as the letters contain detailed and probative information that specifically addresses how the person's role for the organization, establishment, division, or department was leading or critical. *Id.*

The Petitioner stated that he "has played a pivotal role as a Heavy Vehicle and Mobile Equipment Service Technician . . . during his tenure at [redacted] in Uzbekistan." The Petitioner submitted reference letters from company officials, praising the Petitioner's skill and discipline. A regional repair manager at [redacted] stated that the Petitioner's "critical role in training existing and new staff" contributed to "the substantial increase in our yearly income." The official provided a percentage figure for the claimed increase but did not provide corroborating documentation, and did not specify whether this percentage figure was in relation to the entire company's income, or that of one particular division or department. Another official praised the Petitioner's work training colleagues and "[h]is ability to diagnose and efficiently resolve complex issues."

These and other letters include praise for the Petitioner's work, but do not specify whether his role was critical for the entire company or for a division or department of that company. Either way, the Petitioner must establish the distinguished reputation of the entire company, if his role was critical for the entire company, or the distinguished reputation of the department or division for which his role was critical.

To determine the distinguished reputation of an organization or establishment, its relative size or longevity is a determining factor by itself but is considered together with other information. Other relevant factors can include the scale of its customer base or relevant media coverage. *See generally 6 USCIS Policy Manual, supra*, at F.2(B)(1).

The Petitioner submitted a printout from [redacted] website, stating that the company "provides a full range of services for the design, supply, construction and commissioning of oil and gas, industrial and civil facilities at various levels of complexity," but this description of the company's activities does not suffice to establish its distinguished reputation.

In the NOID, the Director stated that the Petitioner had not established that his role was leading or critical, and had not shown that [redacted] has a distinguished reputation. The Director requested "[e]vidence to demonstrate the distinguished reputation of the organizations or establishments." The Director also requested letters containing "detailed and probative information that specifically addresses how the beneficiary's role . . . is or was leading or critical. Details should include the specific tasks or accomplishments of the beneficiary as compared to others who are employed in similar pursuits within the field of endeavor."

In response, the Petitioner quoted from previously submitted letters, stating that they show "[h]is profound impact on team performance and financial success." The Petitioner did not address the issue of the employer's distinguished reputation.

In the denial notice, the Director stated that the Petitioner had not submitted evidence to establish [] distinguished reputation or to establish that the Petitioner's role had been critical for [] or for a department or division thereof.

On appeal, the Petitioner asserts: [] is a major organization in Uzbekistan. . . . Its strong reputation is reflected by the scale of the projects it manages, many of which are key infrastructure developments overseen by the government.” The Petitioner submits additional printouts from the company's website.

Where, as here, a petitioner has been put on notice of a deficiency in the evidence and has been given an opportunity to respond to that deficiency, we will not accept evidence offered for the first time on appeal. *See Matter of Soriano*, 19 I&N Dec. 764 (BIA 1988); *Matter of Obaighena*, 19 I&N Dec. 533 (BIA 1988).

The Director correctly determined that the Petitioner did not submit evidence of [] distinguished reputation when the Director requested such evidence. We agree with the Director that, at the time of the decision, the Petitioner had not met its burden of proof with respect to this issue.

Furthermore, while various individuals at [] described the Petitioner's work in vehicle maintenance, their letters do not establish that the Petitioner's role was leading or critical for [] as a whole, or for any identified department or subdivision of [] that has a distinguished reputation in its own right. General assertions that the Petitioner's work contributed to the company's success do not suffice in this regard. The submitted letters do not establish that the Petitioner has contributed in a way that is of significant importance to the outcome of the activities of [] or any of its divisions or departments.

The Petitioner has not met its burden of proof to satisfy the requirements of the criterion.

The Petitioner also claims to have satisfied the requirements of 8 C.F.R. § 204.5(h)(3)(ix), which require evidence that the individual has commanded a high salary or other significantly high remuneration for services in relation to others in the field.

In denying the petition, the Director stated that the Petitioner had not submitted evidence of his past salary. Review of the Petitioner's immigration file shows that the Petitioner submitted this evidence with his petition and other forms that he filed at the same time.

Nevertheless, the above discussion shows that the Petitioner has not met the requirements of two of the four claimed criteria, and therefore he cannot satisfy the requirements of at least three initial criteria at 8 C.F.R. § 204.5(h)(3). Detailed discussion of the salary criterion cannot change the outcome of the appeal. Therefore, we need not address, and hereby reserve, the issue of the Petitioner's salary.¹

¹ See *INS v. Bagamashad*, 429 U.S. 24, 25-26 (1976) (stating that, like courts, federal agencies are not generally required to make findings and decisions unnecessary to the results they reach); see also *Matter of L-A-C-*, 26 I&N Dec. 516, 526 n.7 (BIA 2015) (declining to reach alternative issues on appeal where an applicant is otherwise ineligible).

We will also reserve the issue of the Director's separate determination that the Petitioner's occupation "as a maintenance technician/mechanic in the field of heavy vehicle and mobile equipment repair . . . does not fall within one of the five fields of extraordinary ability," specifically the sciences, arts, education, business, or athletics, because such discussion is not necessary to reach a determination in this proceeding.

III. CONCLUSION

The Petitioner has not submitted the required initial evidence of either a one-time achievement or documents that meet at least three of the ten lesser criteria. As a result, we need not provide the type of final merits determination referenced in *Kazarian*, 596 F.3d at 1119-20. Nevertheless, we advise that we have reviewed the record in the aggregate, concluding that it does not support a conclusion that the Petitioner has established the acclaim and recognition required for the classification sought.

The Petitioner seeks a highly restrictive visa classification, intended for individuals already at the top of their respective fields. Here, the Petitioner has established that his employer has been impressed with his work, but he has not shown that his work has attracted a degree of recognition that rises to sustained national or international acclaim and demonstrates a "career of acclaimed work in the field" as contemplated by Congress. H.R. Rep. No. 101-723, 59 (Sept. 19, 1990); *see also* section 203(b)(1)(A) of the Act. Moreover, the record does not otherwise demonstrate that the Petitioner is one of the small percentage who has risen to the very top of the field of endeavor. *See* section 203(b)(1)(A) of the Act and 8 C.F.R. § 204.5(h)(2).

The Petitioner has not demonstrated eligibility as an individual of extraordinary ability. We will therefore dismiss the appeal.

ORDER: The appeal is dismissed.